

26TRCV00415 26TRCV00415

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Case Number: 26TRCV00415 Hearing Date: August 4, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SABIO HOLDINGS INC.

, et al.;

Plaintiffs,

vs.

PLANET HOLLYWOOD LLC

, et al.;

Defendants.

Case

No.:

26TRCV00415

Hearing

Date:

August
4, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

SPECIALY APPEARING DEFENDANT PLANET HOLLYWOOD
(IP), LLC'S MOTION TO QUASH PLAINTIFFS' SERVICE OF SUMMONS AND COMPLAINT FOR
LACK OF PERSONAL JURISDICTION

(2)

PLAINTIFFS
SABIO HOLDINGS INC. AND SABIO INC.'S REQUEST TO CONTINUE THE HEARING AND
PERMIT JURISDICTIONAL DISCOVERY

MOVING PARTY: Specially Appearing Defendant, Planet
Hollywood (IP), LLC

RESPONDING PARTY: Plaintiffs, Sabio Holdings Inc. and Sabio
Inc.

(1)

Specially
Appearing Defendant Planet Hollywood (IP), LLC's Motion to Quash Plaintiffs'
Service of Summons and Complaint for Lack of Personal Jurisdiction is GRANTED
pursuant to Code of Civil Procedure sections 410.10 and 418.10.

(2)

Plaintiffs
Sabio Holdings Inc. and Sabio Inc.'s Requests to Continue the Hearing and
Permit Jurisdictional Discovery are DENIED pursuant to In re Automobile
Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.

The Court considers the moving

papers filed on June 26, 2026, the opposition brief filed on July 22, 2026, the supplemental declaration filed on July 27, 2026, the reply brief filed on July 28, 2026, the objection filed on July 29, 2026, and the second supplemental declaration filed on July 30, 2026.

BACKGROUND

Factual Background

On February 3, 2026, plaintiffs Sabio Holdings Inc. and Sabio Inc. (collectively, "Plaintiffs") filed the Complaint against defendants Planet Hollywood LLC, Planet Hollywood Resorts International, LLC, Planet Hollywood (IP), LLC, Planet Hollywood Coast Rica, Marriott International, Inc., Royalton Hotels International Ltd., and Royalton Hotels, and Resorts, Ltd. The Complaint includes the following causes of action: (1) Breach of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Negligence; (4) Fraudulent Inducement/Intentional Misrepresentation; and (5) Negligent Misrepresentation.

Procedural Background

On June 26, 2026, Planet Hollywood (IP), LLC' ("Defendant") filed this motion.

On July 1, 2026, Planet Hollywood LLC, Planet Hollywood Resorts International, LLC, Planet Hollywood (IP), LLC, and Marriott International, Inc. filed the Ex Parte Application of Specially Appearing Defendants for an Order to Advance the Hearing, or in the Alternative, Confirm or Consolidate the Reserved Noticed Hearing Dates, on Special Appearing Defendants' Respective Motions to Quash for Lack of Personal Jurisdiction.

On July 2, 2026, the Court denied the ex parte application as well as the previously filed Joint Stipulation to Consolidate Hearings and Withdraw Ex Parte Application and Hearing.

On July 22, 2026, Plaintiffs filed an opposition brief. On July 27, 2026, Plaintiffs filed a supplemental declaration. On July 28, 2026, Defendant filed its reply brief. On July 30, 2026, Plaintiffs filed a second supplemental declaration and their

responses to Defendant's evidentiary objections.

EVIDENTIARY OBJECTIONS

Plaintiffs'
Objections

Sustain: N/A.

Overrule: 1 to 5.

Defendant's
Objections

Sustain:

15 – Hearsay;

16 – Hearsay;

17 – Hearsay;

18 – Hearsay;

19 – Hearsay;

20 – Hearsay;

32 – Improper legal conclusion;

33 – Relevance;

34 – Relevance; and

35 – Relevance.

Overrule: 1-14, 21-31, and 36.

Defendant's

Objection to the Second Supplemental Declaration

Sustain:

1 and 2 but only as to Exhibit 7 – New evidence introduced after the initial briefing. (See Carabajal v.

CWPSC, Inc. (2016) 245 Cal.App.4th 227, 241 [“The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers.... [T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ... and if permitted, the other party should be given the opportunity to respond. [Citation.]”].)

Overrule: N/A.

REQUEST FOR JUDICIAL NOTICE

Filed after the reply brief, Plaintiffs have filed a Request for Judicial Notice (“RJN”), requesting this Court take judicial notice of:

1.

The Joint Chapter 11 Case Management Summary filed on April 4, 2025 by debtors PB Restaurants, LLC, Planet Express (LAX), LLC, and Times Square Buffet, LLC in the United States Bankruptcy Court for the Middle District of Florida, Orlando Division, at Docket No. 3 in Case No. 6:25-bk-01958-LVV, Exhibit 10;

2.

Statement of Information of Planet Express (LAX) LLC filed with the California Secretary of State on May 3, 2024 (File No. BA20240895329), Exhibit 11; and

3.

Statement of Information of Planet Express (LAX), LLC filed with the California Secretary of State on May 9, 2025 (File No. BA20251044260), Exhibit 12.

The Court DENIES the requests, as they were submitted after the filing of the reply brief. This

timing does not afford Defendant “sufficient notice of the request” in accordance with Evidence Code section 453, subdivision (a).

LEGAL STANDARD

A defendant may serve and file a notice of motion to quash service of summons on the grounds of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a).) Code of Civil Procedure section 418.10 provides the exclusive procedure for challenging personal jurisdiction at the outset. (Roy v. Superior Court (2005) 127 Cal.App.4th 337, 342.) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to section 418.10. (Code Civ. Proc., § 581, subd. (h).)

“A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” (Code Civ. Proc., § 410.10.) “The Due Process Clause protects an individual’s liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful ‘contacts, ties, or relations.’” (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471-472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend “traditional notions of fair play and substantial justice.” (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

When a defendant moves to quash service of the summons and complaint, the plaintiff has “the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) The plaintiff must establish the facts of jurisdiction by a preponderance of the evidence. (Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568.) “When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts.” (Jewish Defense Organization, Inc. v. Superior Court (1999) 72 Cal.App.4th 1045, 1054-1055.)

“Personal jurisdiction may be either general or specific.” (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 445 (Vons).) “A defendant that has substantial, continuous, and systematic contacts with the forum state is subject to general jurisdiction in the state, meaning jurisdiction on any cause of action.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.) “General jurisdiction, as its name implies, extends to any and all claims brought against a defendant. Those claims need not relate to the forum State or the defendant’s activity there; they may concern events and conduct anywhere in the world. But that breadth imposes a correlative limit: Only a select set of affiliations with a forum will expose a defendant to such sweeping jurisdiction. In what [the Supreme Court] ha[s] called the paradigm case, an individual is subject to general jurisdiction in her place of domicile. And the equivalent forums for a corporation are its place of incorporation and principal place of business.” (Preciado v. Freightliner Custom Chassis Corp. (2023) 87 Cal.App.5th 964, 976, internal citation omitted.)

A nonresident may be subject to specific jurisdiction if a three-prong test is met. “First, the defendant must have purposefully availed itself of the state’s benefits. Second, the controversy must be related to or arise out of the defendant’s contacts with the state. Third, considering the defendant’s contacts with the state and other factors, California’s exercise of jurisdiction over the defendant must comport with fair play and substantial justice.” (Gilmore Bank v. AsiaTrust New Zealand Ltd. (2014) 223 Cal.App.4th 1558, 1568, internal citations and emphasis omitted.) “When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant’s burden to demonstrate that the exercise of jurisdiction would be unreasonable.” (Vons, supra, 14 Cal.4th at p. 449, internal citations omitted.)

DISCUSSION

Defendant is seeking to quash

the service of the summons, contending that the Court lacks the authority to exercise personal jurisdiction. (Motion, p. 1:2-5.) Defendant asserts that (1) they were not formed in California; (2) their principal place of business is not in California; and (3) any contacts they may have with California do not give rise to Plaintiffs' claims. (Motion, p. 1:5-8.)

Conversely, Plaintiffs assert both general and specific personal jurisdiction over Defendant. (Opp., pp. 6:11-14:2.) In the alternative, should the Court determine that additional factual information is necessary, Plaintiffs request that the Court continue the motion and allow for jurisdictional discovery. (Opp., pp. 14:4-15:21.) However, the Court concurs with Defendant's arguments and finds that jurisdictional discovery is not warranted in this case.

Specific Jurisdiction

First Prong: Purposefully Availed

With respect to the first prong, Plaintiffs maintain that Defendant purposefully availed itself by (1) intentionally engaging in commercial activities aimed at California through their websites and reservation system, and (2) deliberately establishing a substantial contractual relationship, the anticipated benefits and consequences of which were expected to extend to California. (Opp., pp. 6:19-8:8.) .

Websites

"To determine whether a Web site is sufficient to establish purposeful availment, we first look to the sliding scale analysis described in *Zippo Mfg. Co. v. Zippo Dot Com, Inc.* (W.D.Pa.1997) 952 F.Supp. 1119 (Zippo). (See Pavlovich, supra, 29 Cal.4th at p. 274, 127 Cal.Rptr.2d 329, 58 P.3d 2.) 'At one end of the spectrum are situations where a defendant clearly does business over the Internet. If the defendant enters into contracts with residents of a foreign jurisdiction that involve the knowing and repeated transmission of computer files over the Internet, personal jurisdiction is proper. [Citation.] At the opposite end are situations where a

defendant has simply posted information on an Internet Web site which is accessible to users in foreign jurisdictions. A passive Web site that does little more than make information available to those who are interested in it is not grounds for the exercise [of] personal jurisdiction. [Citation.] The middle ground is occupied by interactive Web sites where a user can exchange information with the host computer. In these cases, the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site.' (Zippo, at p. 1124.)" (Snowney v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1063.)

Here, Plaintiffs reference Exhibits 3 to 5, asserting that these websites, which feature the Planet Hollywood brand and include a California-specific consumer privacy page, are indicative of purposeful availment. (Opp., p. 6:22-23.) However, the Court notes these websites appear to be operated by Planet Hollywood International, as evidenced by the copyright notice found in the bottom-right corner of each exhibit. (Declaration of Adam Reis ("Reis Decl."), Exhs. 3-5.) Since Defendant is not Planet Hollywood International, these exhibits do not substantiate the claim that Defendant operates these websites.

A similar predicament arises with Exhibits 8 and 9, which Plaintiffs assert are "the official booking websites, available to California residents" and "advertised the Resort's amenities, including a 'SoCal Dining' option marketed to Southern California consumers[.]" (Opp., p. 6:23-25.) However, Exhibit 8 does not provide any pertinent information about Defendant and is copyrighted by Planet Hollywood Costa Rica. (Reis Decl., Exh. 8, p. 4.) Likewise, Exhibit 9 fails to present pertinent information about Defendant and is copyrighted by Marriott International, Inc. (Reis Decl., Exh. 9, p. 3.)

Thus, Plaintiffs' argument that Defendant purposefully availed itself through their websites is unfounded. The Court will not exercise jurisdiction over Defendant solely on the basis that some of these websites feature the "Planet Hollywood" brand.

As such, the Court lacks personal jurisdiction based on this theory.

Contract

Plaintiffs argue that “[t]he evidence further establishes that Defendant’s representations regarding the Resort — including the express assurance of backup generator capacity — were reported to and relied upon by Sabio’s Chief Executive Officer in Los Angeles County in approving the booking; that the contract itself designates that California-based CEO by name as the recipient of Marriott Bonvoy Events benefits (Cmpl., Ex. A, Annex A); that Defendant accepted payments for the event made from Sabio Inc. accounts at a California bank, processed from Sabio’s California office; and that Defendant knew its performance failures would cause economic injury to Sabio Inc., a California business. (Rahimtoola Decl., ¶¶ 7–9[.])” (Opp., p. 7:5-12.) However, the Court observes that none of these alleged actions were undertaken by Defendant.

It is crucial to clarify that the contract central to this dispute is between Sabio Holdings and Planet Hollywood Costa Rica, An Autograph Collection All-Inclusive Resort. (Cmpl., Exh. A.) Plaintiffs fail to provide any evidence demonstrating that Defendant owns, operates, or controls Planet Hollywood Costa Rica, An Autograph Collection All-Inclusive Resort, or that they were otherwise engaged in the contract. In fact, the evidence submitted by Defendant indicates that it had no involvement with Planet Hollywood Costa Rica, An Autograph Collection All-Inclusive Resort, other than licensing the Planet Hollywood brand. (Declaration of Jeffrey C. Sirolly re: Planet Hollywood (IP), LLC, ¶¶ 2-7.)

Therefore, Plaintiffs’ assertion that “the express assurance of backup generator capacity — were reported to and relied upon by Sabio’s Chief Executive Officer in Los Angeles County in approving the booking; that the contract itself designates that California-based CEO by name as the recipient of Marriott Bonvoy Events benefits (Cmpl., Ex. A, Annex A); ... and that Defendant knew its performance failures would cause economic injury to Sabio Inc., a California business” is deemed irrelevant, as Defendant had no connection to the underlying contract.

Moreover, the claim that “Defendant accepted payments for the event made from Sabio Inc. accounts at a California bank, processed from Sabio’s California office” is incorrect, as Plaintiffs’ own Complaint informs the Court that Defendant was not implicated in this

payment process. Plaintiffs' Exhibit A

in the Complaint clearly demonstrates that all funds were directed to Planet

Hollywood Costa Rica, An Autograph Collection All-Inclusive Resort. (Compl., Exh. A, p. 7.) As such, the Court lacks personal jurisdiction

based on this theory.

Consequently, Plaintiffs

failed to establish specific jurisdiction. There is no evidence to satisfy the

first prong: purposeful availment by Defendant within the meaning of *Gilmore Bank* (Supra).

General Jurisdiction

Plaintiffs contend that

Defendant's connections to California were both continuous and systematic, substantiated by two primary arguments: (1) the marketing and sale of services to California residents, and (2) the operation of a Planet Hollywood restaurant in California at the Los Angeles International Airport by Defendant or its subsidiaries or agents. (Opp., pp. 12:5-14:2.)

"General (also called

all-purpose) jurisdiction means that a defendant's contacts with a state are sufficiently extensive that the 'defendant is "essentially at home," ' and the court may exercise jurisdiction over the defendant regardless of whether the claims relate to the forum state." (Doe

v. Dameron (2021) 70 Cal.App.5th 684, 689-690.) "[T]he proper inquiry, this Court has explained, is whether a foreign corporation's 'affiliations with the State are so "continuous and systematic" as to render [it] essentially at home in the forum State. [Citation.]" (Daimler AG v. Bauman (2014) 571 U.S. 117, 119, internal citation omitted.)

As discussed above, Plaintiffs

have not successfully demonstrated that Defendant marketed and sold services to California residents.

Furthermore, the Court finds that

the existence of a single business location is inadequate to establish that

Defendant's presence in California is both continuous and systematic,

particularly in light of the absence of evidence indicating that Defendant owns,

operates, or otherwise controls the restaurant in question. Plaintiffs concede that the restaurant is

operated by Planet Express (LAX), LLC, with Planet Hollywood Restaurant Group, LLC, and PB Restaurants, LLC, identified as the alleged managers or members. (Opp., pp. 12:24:13-2.) Clearly, Defendant is not one of these companies.

Moreover, Plaintiffs assert that “[a]ll of these entities operate(d) out of the same offices, which is also the principal place of business of Defendant.” (Opp., p. 13:2-4.) However, this assertion is meritless, as Plaintiffs do not provide admissible evidence to substantiate these claims and do not offer a legal analysis to support the claim that any of these limited liability companies function as the alter ego of another.

Lastly, Plaintiffs claim that “the terms and conditions of Defendant’s public website provides that the website ‘is owned, operated, licensed, or controlled by PB Restaurants, LLC (“Planet Hollywood”),’ but the privacy policy for that same website states ‘[y]our privacy is very important to Planet Hollywood, LLC (“Planet Hollywood”, “we” or “us”).’ (Reis Decl. Exs. 6, 7.)” (Opp., p. 13:3-7.) However, it remains unclear whether the restaurant’s website features this privacy policy or if it pertains to a separate page managed by Planet Hollywood, LLC. In either case, it is unclear how this information could substantiate a claim for general jurisdiction, as Defendant is neither PB Restaurants, LLC, nor Planet Hollywood, LLC.

As such, the Court lacks personal jurisdiction based on these theories.

Jurisdictional Discovery

“A plaintiff attempting to assert jurisdiction over a nonresident defendant is entitled to an opportunity to conduct discovery of the jurisdictional facts necessary to sustain its burden of proof. [Citation.] In order to prevail on a motion for a continuance for jurisdictional discovery, the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction. [Citation.] ... A ruling on a motion to continue in order to allow additional time to discover jurisdictional facts lies in the trial court’s discretion.” (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127, internal citations omitted.)

Plaintiffs assert that the following discovery requests, propounded on July 10, 2026, will facilitate their evaluation of the jurisdictional questions presented by the motions: (1) “the franchise, licensing, sublicensing, and intercompany agreements governing the Planet Hollywood brand and the operation, branding, marketing, or managing the Resort;” (2) “documents identifying the respective rights and responsibilities of each Planet Hollywood entity with respect to quality control, inspections, operational standards, marketing, reservations, and guest experience; (3) “insurance policies, claims correspondence, and communications concerning Plaintiffs’ event, and the handling of Plaintiffs’ claims and responsibility therefore;” and (4) “documents supporting the factual assertions contained in Defendant’s declarations.” (Opp., pp. 14:22-15:9.)

However, Plaintiffs fail to articulate how these specific discovery requests are likely to lead to the production of evidence of facts establishing jurisdiction. As such, Plaintiffs request to continue the hearing and grant permission for jurisdiction discovery is DENIED.

ORDERS

1) Specially

Appearing Defendant Planet Hollywood (IP), LLC’s Motion to Quash Plaintiffs’ Service of Summons and Complaint for Lack of Personal Jurisdiction is GRANTED.

2) Plaintiffs

Sabio Holdings Inc. and Sabio Inc.’s Requests to Continue the Hearing and Permit Jurisdictional Discovery are DENIED.

3) Defendant

is ordered to provide notice of this Court’s ruling.

IT IS SO ORDERED.

DATED: August 4, 2026

Tamara
Hall

Judge
of the Superior Court